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Amending Acts:

1. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.10.07
2. Act to Amend Some Nepal Acts, 2072 2072.11.13
3. Act to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11
4. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 34 of the year 2048

An Act Made to Establish Kathmandu University

Preamble: Whereas, it is desirable to establish and manage a university in the non-governmental sector to operate higher-level educational institutions for study, teaching, and research in various fields such as arts, science, management, and technology,

Parliament has enacted this Act in the twentieth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Kathmandu University Act, 2048".

(2) This Act shall commence on a date appointed by the Government of Nepal by notification published in the Nepal Gazette. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "University" means Kathmandu University established under this Act.

(b) "Assembly" means the University Assembly formed pursuant to Section 4.

(c) "Executive Council" means the Executive Council formed pursuant to Section 6.

(d) "Academic Council" means the Academic Council formed pursuant to Section 8.

(e) "Dean" means the head of various faculties established under the University.

(f) "School" means the body under which the programs of each faculty of the University are conducted.

(g) "College" means a teaching institution affiliated with the University.

(h) "Principal" means the principal of a college.

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of University: (1) Kathmandu University shall be established for the operation of higher-level

teaching institutions for arts, science, management, and technical subjects.

(2) The University shall be a self-governing and organized body with perpetual succession.

(3) The University shall have its own separate seal.

(4) The University may, like an individual, acquire, use, sell, mortgage, or otherwise dispose of movable and immovable property.

(5) The University may, like an individual, sue and be sued.

(6) The central office of the University shall be located in Dhulikhel. 4.

Formation of University Assembly: (1) There shall be a University Assembly consisting of the following members:- (a) Chancellor -Chairperson (b) Two persons -Members (c) Vice-Chancellor -Member (d) Registrar -Member-Secretary (e) Member of the National Planning Commission (looking after Education) -Member (f) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. Secretary, Ministry of Education, Science and Technology -Member (g) Secretary, Ministry of Finance -Member (h) Deans -Members (i) One person from among the Principals -Member (j) Chief of the Banepa Converted by the Act to Amend Some Nepal Acts, 2072 by substituting the words "Chief of Municipal Executive". Municipal Executive -Member (k) Chief of the Dhulikhel Converted by the Act to Amend Some Nepal Acts, 2072 by substituting the words "Chief of Municipal Executive". Municipal Executive -Member (l) Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. (m) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. Two persons from among the donors on an inclusive basis -Members (n) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. Five persons, including at least two women, from among distinguished scholars on an inclusive basis -Members (o) One person from among the industrialists -Member (p) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. Two persons, including at least one woman, from among the teachers -Members (q) One person from among the students -Member (r) Librarian, University -Member (2) Members pursuant to clauses (i), (m), (n), (o), (p), and (q) of sub-section (1) shall be nominated by the Assembly on the recommendation of the Executive Council, and members pursuant to clause (l) shall be nominated by the Chancellor on the recommendation of two persons. (3) The term of office of nominated members shall be three years. (4) The Assembly shall be the supreme and sovereign body of the University. (5) Added by the Act to Amend Some Nepal Acts Relating to Education, 2077. The person chairing the Assembly meeting shall certify the decisions of the Assembly meeting. 5.

Functions, Duties, and Powers of the Assembly: The functions, duties, and powers of the Assembly shall be as follows:- (a) To conduct and manage programs in relevant subjects. (b) To make necessary arrangements for the academic affiliation of colleges. (c) To determine and confer degrees. (d) To approve the annual program and pass the annual budget of the University. (e) To pass the rules of the University. (f) To direct and guide the Schools of the University and affiliated colleges. (g) To discuss the annual report of the University and its subordinate bodies and evaluate programs. (h) To discuss and approve the audit report. (i) To approve the teaching staff and employee positions necessary for the academic and administrative work of various bodies of the University. (j) To grant permission for running any new program if necessary. (k) To form a committee to submit recommendations to the Chancellor for the appointment of the Vice-Chancellor. (l) To form various committees as required. (m) To determine the service and conditions of office-bearers, teachers, and employees. 6. Formation of Executive Council: (1) There shall be an Executive Council of the University consisting of the following members:- (a) Vice-Chancellor Chairperson (b) Registrar Member (c)

Two persons from among the Deans Members (d) One teacher representative nominated by the Assembly Member (2) Members pursuant to clause (c) of sub-section (1) shall become members in rotation according to the alphabetical order of the subject faculties. (3) The term of office of nominated members shall be three years. 7. Functions, Duties, and Powers of the Executive Council: The functions, duties, and powers of the Executive Council shall be as follows:- (a) To implement and cause to implement the decisions and directives of the Assembly. (b) To comply with the policies and directives determined by the Government of Nepal. (c) To prepare the annual program, budget, progress report, audit report, and other proposals to be presented to the Assembly. (d) To accept donations and contributions received by the University. (e) To preserve the funds and movable and immovable property of the University, and to sell as necessary, remaining within the policies and directives of the Assembly. (f) To supervise and inspect the activities conducted by the University and present reports thereof to the Assembly. (g) To prepare drafts of rules relating to the University and submit them to the Assembly for approval. (h) To appoint employees needed by the University. (i) To determine the service and conditions of employees and submit them to the Assembly. 8.

Formation of Academic Council: (1) There shall be an Academic Council as the principal body in the academic and scholarly field of the University, consisting of the following members:- (a) Vice-Chancellor Chairperson (b) Registrar Member (c) Deans Members (d) Five persons from among the chairs of subject committees Members (e) Two persons from affiliated colleges Members (2) Members other than ex-officio members shall be nominated by the Assembly. (3) The term of office of nominated members shall be three years. 9. Functions, Duties, and Powers of the Academic Council: The functions, duties, and powers of the Academic Council shall be as follows:- (a) To act as the principal body regarding academic and scholarly matters of the University. (b) To determine the quality of study and teaching at the University, curriculum, standards and types of examinations, evaluation methods, teaching materials, and the number and qualifications for student admission. (c) To formulate policies relating to research and approve research programs. (d) To evaluate the academic programs of students. (e) To determine the standards of teaching and research. (f) To make arrangements for honorary degrees. (g) To prescribe minimum qualifications for teachers for various levels. 10. Organization of the University: (1) The collective entity of the Chancellor, Vice-Chancellor, Registrar, Deans, and affiliated colleges shall constitute the form of the University. (2) There shall be prescribed Schools for prescribed subjects for higher education. (3) The functions, duties, and powers of Schools shall be as prescribed. (4) Provisions relating to Colleges shall be as prescribed. 11. Responsibility and Delegation of Authority: (1) Subject to this Act and the rules made under this Act, all authority of the University shall vest in the Assembly. (2) The Assembly may delegate all or some of its powers mentioned in this Act or the rules made under this Act, as necessary, to the Executive Council, the Academic Council, and other office-bearers, or to committees established as prescribed. 12. Office-bearers: The University shall have the following office-bearers:- (a) Chancellor (b) Pro-Chancellor (c) Vice-Chancellor (d) Registrar (e) Deans (f) Other office-bearers. 13.

Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) Omitted by the Act to Amend Some Nepal Acts Relating to Education, 2073.(2) (3) The Chancellor shall be the chief of the University and the Chairperson of the Assembly. (4) The Chancellor shall have the authority to inspect or cause an inquiry into any subject or matter related to the University or the University Added by the Act to Amend Some Nepal Acts Relating to Education, 2073.and to give directions. (5) The Chancellor may cancel any action contrary to this Act or the rules made under this Act. (6) Other powers of the Chancellor shall be as prescribed. (7) Omitted by the Act to Amend Some Nepal Acts Relating to Education, 2073.(7) Added by the Act to Amend Some Nepal Acts Relating to Education, 2073.13A. Pro-Chancellor: (1) The Minister or Minister of State for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) In the absence of the

Chancellor, the Pro-Chancellor shall preside over the convocation ceremony. (3) The Pro-Chancellor may inspect or cause to inspect the University and give directions consistent with the law, as necessary. 14. Vice-Chancellor: (1) A person recommended by a three-member committee formed by the Assembly shall be appointed by the Chancellor to the post of Vice-Chancellor of the University for a term of four years. (2) The Vice-Chancellor shall be the principal administrative officer of the University. (3) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2073.(3) The Registrar shall record the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. (4) In the absence of the Chancellor and the Pro-Chancellor, the Vice-Chancellor shall chair the University Assembly. (5) It shall be the duty of the Vice-Chancellor to comply with and cause compliance with this Act or the rules made under this Act, and for this purpose, if the Vice-Chancellor is of the opinion that an emergency situation has arisen requiring immediate action, he/she may take such action as he/she deems appropriate and necessary, and shall inform the concerned office-bearer or body as soon as possible. (6) The Vice-Chancellor shall implement the decisions or orders of the Assembly. (7) The Vice-Chancellor shall have general control over all academic and scholarly activities of the University. (8) All subjects to be presented to the Assembly shall be presented through the Vice-Chancellor. (9) The Vice-Chancellor shall implement all functions of the University under the direction of the Assembly. 15.

Registrar: (1) The Registrar of the University shall be appointed by the Chancellor for a term of four years on the recommendation of the Vice-Chancellor. (2) The Registrar shall be a salaried office-bearer of the University working full-time. (3) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2073.(3) The Registrar shall record the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor. (4) The Registrar shall have the authority to carry out and cause to carry out responsibly all types of administrative and academic work of the University. (5) General administration, financial administration, and academic activities of the University shall be carried out under the Registrar. (6) Provisions relating to other functions, duties, powers, and remuneration of the Registrar shall be as prescribed. 16. Deans and Other Office-bearers: (1) The appointment of a Dean shall be for a term of three years. (2) The Dean shall be the head of the faculty and shall be a full-time office-bearer. (3) The appointment of the Dean shall be made by the Executive Council. (4) The functions, duties, and powers of the Dean and other office-bearers shall be as prescribed. Added by the Act to Amend Some Nepal Acts Relating to Education, 2073.16A. Removable from Office: (1) If one-third of the members of the Assembly at the time submit a written application to the Chancellor stating that the Vice-Chancellor or Registrar has failed to fulfill the responsibilities appropriate to their office, has not worked honestly, or has not conducted themselves in a manner befitting their office, the Chancellor shall form a three-member investigation committee consisting of a member of the University Grants Commission, presided over by a member of the Assembly, and the Secretary of the Ministry of Education, Science and Technology. (2) The investigation committee formed pursuant to sub-section (1) shall conduct the necessary investigation in relation thereto and submit its report to the Chancellor within thirty days. (3) Upon receiving the report pursuant to sub-section (2), the Chancellor shall submit the report to the Assembly. (4) If, during discussion on the report submitted pursuant to sub-section (2), at least fifty-one percent of the total number of members of the Assembly decide to remove the Vice-Chancellor or Registrar from office, the Chancellor shall remove the Vice-Chancellor or Registrar from office.

Provided that, before such removal, he/she shall not be deprived of an opportunity to present a defense.

(5) The procedure to be adopted when investigating accusations against or removing other office-bearers of the University, excluding the Vice-Chancellor and Registrar, pursuant to sub-section (1) shall be as

prescribed.

(6) If an investigation is initiated against any office-bearer pursuant to this Section, a final decision must be made within six months. Until such final decision is made, he/she shall not be entitled to work in the post he/she holds.

(7) For carrying out the daily work that the office-bearer pursuant to sub-section (6) is required to perform, the Chancellor may assign responsibility to the senior-most office-bearer of the University. 17. Schools: The main academic programs under the University shall be conducted in Schools. Schools shall be established for faculties such as Arts, Science, Management, Technology, etc. 18. Faculty Board and Subject Committee: (1) Each School shall have a Faculty Board for the conduct of academic and scholarly programs.

(2) Various Subject Committees shall exist under the Faculty Board of the School to determine the curriculum of various academic and scholarly subjects conducted in each School.

(3) The formation, other functions, duties, and powers of the Faculty Board and Subject Committees shall be as prescribed. 19. Audit: The audit of the University shall be conducted by an auditor appointed by the Assembly. 20. Qualification Required for Admission to the University: To be admitted to the University, a person must have passed an examination as prescribed. Added by the Act to Amend Some Nepal Acts Relating to Education, 2073.20A. Free Higher Education and Scholarships: (1) Higher education shall be free for Dalit, marginalized, disabled, and economically disadvantaged students who meet the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions.

(2) For the purpose of sub-section (1), the basis, criteria, classification, and other related provisions shall be as determined by the Government of Nepal by publishing a notification in the Nepal Gazette.

(3) Amended by the Act to Amend Some Nepal Acts, 2082.A student may avail of the facility pursuant to sub-section (1) only once at each level.

(4) Notwithstanding anything contained in the prevailing law, seats as prescribed shall be reserved for Dalit students for admission to technical and vocational higher education.

(5) The University shall make provisions for higher education for the sons and daughters of martyrs, disappeared persons, and persons with disabilities, as per the provisions made in the prevailing law.

(6) A student who has studied from grade six to grade ten in a community school shall receive a scholarship in higher education according to the prevailing law. 21.